

Court No. - 41

Case :- APPLICATION U/S 482 No. - 36907 of 2011

Petitioner :- Vishwas Malik

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Anurag Pathak

Respondent Counsel :- Govt. Advocate

Hon'ble Rajesh Dayal Khare, J.

Heard learned counsel for the applicant and learned A.G.A. for the State.

The present application under Section 482 Cr.P.C., has been filed for quashing the proceedings of Case No. 784 of 2006, (U.P. Power Corporation Vs. Vishwas Malik) under Sections 135/136/138 of Electricity Act, 2003, Police Station Nagal, District Saharanpur pending before learned Special/Additional Sessions Judge, Court No.5, District Saharanpur.

It is contended by learned counsel for the applicant that as per the order passed by the opposite party no.2, dated 24.04.2007, the amount was reduced and the amount as directed was also deposited by the applicant, copy of the deposit receipt is annexed as Annexure-4 to the affidavit accompanying the application. It is further contended that the electricity of the applicant was disconnected for the alleged theft on 21.07.2006, thereafter complaint was filed on 20.11.2006 inspite of the fact that the entire amount has been deposited by the applicant. Learned counsel for the applicant has referred to Annexure-2 to the affidavit accompanying the application, which is notification of the amending clause 8.2 of the Electricity Code, accordingly to which the complaint has to be filed within 30 days from the date of disconnection but in the present, the complaint has been filed after a lapse of 4 months which is against the provisions of law. It is further contended that time barred complaint has been filed as the applicant has approached the consumer forum for the redressal of his grievances and as a counter blast, the present proceedings has been initiated by the opposite party no.2.

Issue notice to the opposite party no.2 returnable within a period of four weeks. Steps be taken within a week.

Learned A.G.A. prays for and is granted four weeks' time for filing counter affidavit. Opposite party no.2 may also file counter affidavit within the same period. As prayed by learned counsel for the applicant, two weeks, thereafter, is granted for filing rejoinder affidavit.

List immediately after expiry of the aforesaid period before appropriate Court.

Till the next date of listing, no coercive action shall be taken against the applicant in the aforesaid case.

Order Date :- 2.1.2012

S.Ali

Court No. - 87

Case :- APPLICATION U/S 482 No. - 36907 of 2011

Applicant :- Vishwas Malik

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Anurag Pathak, Prashant Ji Pandey

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Neeraj Tiwari, J.

1. Due to paucity of time, case could not be heard today.
2. List again on 21.11.2023.
3. For reasons contained in order dated 02.01.2012, interim order granted earlier is extended till the next date of listing.

Order Date :- 12.10.2023

ADY

Court No. - 87

Case :- APPLICATION U/S 482 No. - 36907 of 2011

Applicant :- Vishwas Malik

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Anurag Pathak, Prashant Ji Pandey

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Neeraj Tiwari, J.

1. Due to paucity of time, this case could not be heard today.
2. List this case on 04.01.2024.
3. Interim order, if any, shall continue till the next date of listing.

Order Date :- 21.11.2023

ADY

Court No. - 88

Case :- APPLICATION U/S 482 No. - 36907 of 2011

Applicant :- Vishwas Malik

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Anurag Pathak, Prashant Ji Pandey

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Sanjay Kumar Pachori, J.

Shri Prashant Ji Pandey, learned counsel for the applicant and learned A.G.A for the State are present.

Learned A.G.A. prays for and is granted two weeks' time to file counter affidavit. Rejoinder affidavit, if any, may be filed within one week thereafter.

Despite service of notice on Opposite party No.2, none has appeared.

Interim order, if any, is extended till the next date of listing.

List on 20.02.2024.

Order Date :- 4.1.2024

K.K.Tiwari

Court No. - 88

Case :- APPLICATION U/S 482 No. - 36907 of 2011

Applicant :- Vishwas Malik

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Anurag Pathak, Prashant Ji Pandey

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Sanjay Kumar Pachori, J.

Shri Rajendra Kumar Mishra, Advocate holding brief of Shri Prashant Ji Pandey, learned counsel for the applicant and Shri Anuj Kumar Mishra, learned A.G.A. for the State are present. Despite service of notice upon opposite party No. 2, none appears on his behalf.

List on 8.4.2024.

Learned counsel for the applicant shall inform learned counsel for the opposite party No. 2 about the order passed today.

Order Date :- 13.3.2024

T. Sinha

Court No. - 82

Case :- APPLICATION U/S 482 No. - 36907 of 2011

Applicant :- Vishwas Malik

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Anurag Pathak, Prashant Ji Pandey

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Saurabh Srivastava, J.

Learned counsel for the applicant prays and granted two weeks time to file rejoinder affidavit in reply to counter affidavit on behalf of the State which is available in the records.

List immediately after two weeks.

Order Date :- 16.4.2024

Shaswat

Court No. - 82

Case :- APPLICATION U/S 482 No. - 36907 of 2011

Applicant :- Vishwas Malik

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Anurag Pathak, Prashant Ji Pandey

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Subhash Chandra Sharma, J.

At the request of learned counsel for the applicant, list on 15.07.2024 for hearing.

It is made clear that on the next date no further time will be granted to learned counsel for the applicant.

Order Date :- 3.7.2024

Sunil Kr. Gupta

Court No. - 82

Case :- APPLICATION U/S 482 No. - 36907 of 2011

Applicant :- Vishwas Malik

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Anurag Pathak, Prashant Ji Pandey

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Subhash Chandra Sharma, J.

Supplementary affidavit filed by learned counsel for the applicant is taken on record.

Heard learned counsel for the applicant and learned A.G.A for the State.

It is submitted by the learned counsel for the applicant that in this case the electricity department filed a complaint against the applicant on 20.11.2006 by showing the offence to be committed on 21.7.2006. After the limitation period provided for filing of complaint as provided in para 8.2 of the U.P. Electricity Supply Code, 2005. In this regard an application was filed before the learned trial court on 29.9.2011 but it is still pending and has not been decided till now. It is also submitted that the applicant appeared before the learned trial court and was granted interim bail. He filed the aforesaid application for deciding the proceedings as being time barred but it was kept pending and the learned trial court insisted on appearing and hearing on regular bail and also issued NBW against him for securing his appearance. It is further submitted that the learned trial court be directed to decide the application moved by him on 29.9.2011 by passing appropriate order regarding time barred complaint and then to proceed with the matters.

Learned A.G.A has no objection in this regard.

Considering the facts and circumstances of the case, submissions made by the learned counsel for the applicant, learned A.G.A and the material available on record, it is directed that the learned trial court is to decide the application moved by the applicant on 29.9.2011 in accordance with law within a period of 30 days from the date of production of a certified copy of this order then to proceed further.

Accordingly, this application is disposed of finally.

Order Date :- 15.7.2024.G.S